

Ashok Kumar Dureja v. State of U.P. and Another

High Court of Judicature at Allahabad · Single Judge · 3 November 2025 · Application U/S 482 No. 6194 of 2010 · **Application under Section 482 CrPC dismissed for want of prosecution; interim order vacated.**

HEADNOTE

On a Section 482 CrPC application to quash a pending electricity-theft trial under Section 135 of the Electricity Act, 2003, the applicant argued that Clause 8.1(b)(ii) of the Electricity Supply Code, 2005 bars booking theft for mere meter-seal or window-glass breakage and that a Junior Engineer was not competent to lodge the FIR. The High Court granted time for affidavits and stayed coercive action in 2010, later dismissed the application for non-prosecution, restored it in 2021 with the interim continuing, and on 3 November 2025, none appearing for the applicant even in the revised call, dismissed the application for want of prosecution and vacated any interim order. The Clause 8.1(b)(ii) and FIR-competence points were not decided.

FACTUAL SUMMARY

Ashok Kumar Dureja applied under Section 482 CrPC to quash Special Sessions Trial No. 78 of 2006, under Section 135 of the Electricity Act, 2003, pending before the Special Judge, E.C. Act, Moradabad. The allegation was that the energy meter's seal had been tampered. He contended that Clause 8.1(b)(ii) of the Electricity Supply Code, 2005 bars booking a theft case for mere breakage of window glass or an old seal, so no FIR could have been lodged, and that a Junior Engineer had lodged the FIR though Government Order No. 2635/24-P-3-204 dated 5 October 2004 confined competence under Section 135 to the Assistant Engineer.

On 12 March 2010 the Court granted time for a counter-affidavit and rejoinder and directed that no coercive action be taken till the next listing. The application was dismissed for non-prosecution on 28 November 2019, restored on 19 February 2021 with the earlier interim continuing, listed again in 2024, and called in the revised list on 3 November 2025.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::dismissal-for-want-of-prosecution

482 CrPC dismissed for want of prosecution; s.135 trial not quashed

HOLDING

None appearing for the applicant to press the Section 482 application when the case was called in the revised list, the application is dismissed for want of prosecution and any interim order stands vacated. The Court did not decide whether Clause 8.1(b)(ii) of the Electricity Supply Code, 2005 barred a theft booking for mere seal breakage, whether a Junior Engineer was competent to lodge the Section 135 FIR, or whether Special Sessions Trial No. 78 of 2006 should be quashed. ¶ 3-4

FLAG Thin procedural disposal. Order-sheet from 12.3.2010 to 3.11.2025; the disposing order of 3.11.2025 is numbered paras 1-4. The 12.3.2010 order (Rajesh Dayal Khare, J.) recorded the Clause 8.1(b)(ii) and Junior Engineer competence contentions and stayed coercive action; a 28.11.2019 dismissal for non-prosecution was recalled on 19.2.2021. Coram is the bench that finally dismissed the application. Clause 8.1(b)(ii) is as invoked by the applicant; it was not construed.

PRINCIPLE TAGS

writ-dismissed-for-want-of-prosecution-interim-vacated After an interlocutory stay of coercive action on a Section 482 challenge to a Section 135 trial, the application was dismissed for want of prosecution when none appeared for the applicant even in the revised call, and any interim order was vacated, leaving the theft-trial and Code points undecided. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 8.1(B)(II) OF THE ELECTRICITY SUPPLY CODE, 2005 BARS BOOKING A THEFT CASE FOR MERE BREAKAGE OF THE METER SEAL OR WINDOW GLASS

Applicant's contention on 12.3.2010; clause number as stated in the order, not decided. ¶ order of 12.3.2010

NOT DECIDED — WHETHER A JUNIOR ENGINEER WAS COMPETENT TO LODGE AN FIR UNDER SECTION 135 OF THE ELECTRICITY ACT, 2003

Applicant relied on Government Order No. 2635/24-P-3-204 dated 5 October 2004 confining competence to the Assistant Engineer; not decided. ¶ [order of 12.3.2010](#)

NOT DECIDED — WHETHER SPECIAL SESSIONS TRIAL NO. 78 OF 2006 SHOULD BE QUASHED UNDER SECTION 482 CRPC

The 482 application was dismissed for want of prosecution without examining the merits of the quashing prayer. ¶ [3-4](#)

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.